NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 29.05.2020

THROUGH VIDEO CONFERENCING

CAUSE LIST

PRESENT: 1. Hon'ble Member (J), **Shri Rajeswara Rao Vittanala**
2. Hon'ble Member (T), **Shri Ashutosh Chandra**

CP/CA No.	Purpose	Sec	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CP(CAA) No. 81/BB/2017	For hearing IA 135/2020 **(For direction)**	Sec 230/232	M/s Objectwin Technology India Pvt. Ltd. & Another	S Manjunath, Advocate for applicant		

ADVOCATE FOR PETITIONER/s: S. MANJUNATH

ADVOCATE FOR RESPONDENT/s: —

ORDER

Heard Shri S. Manjunath, learned Counsel for the Applicant in IA No.135 of 2020 through Video Conference.

I.A. No.135 of 2020 in CP (CAA) No.81/BB/2017 is allowed by separate order. Company Petition is already closed.

Member (T) **Member (J)**

Krishna

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A. No. 135 of 2020 in
CP (CAA) No.81/BB/2017
Under Rule 11 of NCLT Rules, 2016
R/w Section 5 of Limitation Act, 1963

BETWEEN:

M/s. ObjectWin Technology India Pvt. Ltd.
Regd. Off: Kalyani Magnum IT Park,
B-Wing, 165/2, 6th Floor, Doraisani Palya,
IIM Post Bannerghatta Road,
Bangalore – 560 076. - Applicant/Demerged Company

AND

M/s. ObectWin International Private Limited
Regd. Off: Kalyani Magnum IT Park,
B-Wing, 165/2, 6th Floor, Doraisani Palya,
IIM Post Bannerghatta Road,
Bangalore – 560 076. - Resulting Company

Date of Order: 29th May, 2020

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
2. Hon'ble Shri Ashutosh Chandra, Member (Technical)

Parties/Counsels Present:

For the Applicant/Demerged Company : Mr. S. Manjunath

ORDER

Per: Ashutosh Chandra, Member (Technical)

1. I.A. No. 135 of 2020 in CP (CAA) No.81/BB/2017 is filed by M/s. ObjectWin Technology India Private Limited (hereinafter referred to as 'Applicant/ Demerged Company') under Rule 11 of the NCLT Rules, 2016 R/w Section 5 of the Limitation Act, 1963, by inter alia seeking to condone the delay of 569 days caused in submission of the Order of this Tribunal dated 26.04.2018 along with the Corrigendum dated 05.07.2018 to the Registrar of Companies, Karnataka and to further direct the ROC to accept the same and take them on record, etc.

2. Brief facts of the case, which are relevant to the issue in question, as mentioned in the Application, are as follows:

(1) Company Petition bearing CP (CAA) No.81/BB/2017 is jointly filed by the Demerged Company and the Resulting Company u/s 230 to 232 of Companies Act, 2013 R/w Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 inter alia praying for sanctioning the Scheme of Arrangement whereby Demerged Company is proposed to be demerged into Resulting Company which shall be binding upon all the Shareholders and Creditors of both the said Companies.

(2) On consideration of the same, the Tribunal vide its Common Order dated 26th April, 2018 allowed the said Petition and a Corrigendum dated 05.07.2018 was also issued to the said Order. Further, vide the said Order, it is directed that the Petitioner Companies shall file a certified copy of the same to the Registrar of Companies, Karnataka within thirty days from the date of receipt of the Order.

(3) It is stated that the Resulting Company on receipt of the said Order and the Corrigendum delivered the said Order along with Corrigendum to the ROC, Karnataka, Bangalore as an attachment to eForm INC-28 vide SRN H01914480 on 20.08.2018 within 30 days from the date of receipt of the Corrigendum.

(4) However, inadvertently, the Demerged Company has failed to deliver the said Order dated 26.04.2018 along with the Corrigendum dated 05.07.2018 to the ROC, Karnataka, Bangalore within 30 days from the date of receipt of the said Order and Corrigendum. Upon noticing the same, it has filed eForm INC-28 along with said Order and Corrigendum vide SRN R33866682 dated 24.02.2020. The MCA Portal while uploading the said eForm has issued a notice to seek condonation of delay. Thus, it is prayed that the said delay be condoned in delivering the said Order along with Corrigendum.

3. Heard Mr. S. Manjunath, learned Counsel for the Applicant through Video Conference (VC). We have carefully perused the pleadings of the Party and the extant provisions of the Companies Act, 2013 and the Rules made thereunder.

4. Mr. S. Manjunath, learned Counsel for the Applicant, has inter alia submitted that as per Rules, any Order of Tribunal is required to be filed with Registrar of Companies, within 30 days from the date of receipt of the Order. Since the Order dated 26.04.2018 along with the Corrigendum dated 05.07.2018 was filed with a delay of 569 days, the Registrar of Companies is not accepting the same by raising objection that delay has to be condoned by the Tribunal. The delay is neither intentional nor deliberate and thus prayed that the delay may be condoned by directing the ROC to accept the filing of Order along with the Corrigendum.

5. It is not in dispute that the main Company Petition was disposed of by an Order dated 26.04.2018. It is also seen that the Scheme of Arrangement was envisaged and approved so that the Resulting Company, which deals with software applications and solutions, would benefit by having a separate identity, its own capital and human resource management, focussed leadership, etc., which would be hampered if the delay prayed for is not condoned. As per the learned Counsel the delay has occurred due to inadvertence. In order that the Demerged and Resulting Companies can avail the benefits of the Scheme, it would be just and fair to condone the delay in filing the Order, along with the Corrigendum thereto, to the Registrar of Companies.

6. In view of the above, I.A No. 135 of 2020 in C.P. (CAA) No. 81/BB/2017 is hereby allowed by condoning the delay of 569 days in submission of the Order passed by this Tribunal dated 26.04.2018 along with the Corrigendum dated 05.07.2018 to the Registrar of Companies, Karnataka, with a further direction to the ROC to take appropriate action by accepting the eForm INC-28 filed by Demerged Company vide SRN R33866682 along with the Order dated 26.04.2018 and the Corrigendum dated 05.07.2018, on submission of this Order. The Applicant is directed to submit a copy of this order to the ROC within a period of 30 days from the date of receipt of this order. No order as to costs.

ASHUTOSH CHANDRA
MEMBER TECHNICAL

RAJESWARA RAO VITTANALA
MEMBER, JUDICIAL

Krishna